No. 05-20-0517-CV

IN THE COURT OF APPEALS
FOR THE FIFTH DISTRICT OF TEXAS
AT DALLAS

IN RE MARRIAGE

MALCOLM JOHNSON
Appellant,

v.

VERONICA POWELL-JOHNSON
Appellee.

On Appeal from the 255th Judicial District Court, Dallas County, Texas
Trial Court Cause No. DF-19-12398

APPELLEE'S BRIEF ON THE MERITS

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STATEMENT REGARDING ORAL ARGUMENT

This appeal does not present unique legal issues. While the record is somewhat convoluted, the evidence reflected therein is not particularly complex or unusual. Rather, the record consists of evidence regarding the marital estate and factors supporting a disproportionate division of that estate favoring the wife. There were no contested property values at the trial court as Appellant failed to prepare an inventory and appraisement. Appellant further failed to respond to interrogatory and disclosure requests, and submitted inadequate documents in response to production requests.

One of Appellant's grounds for appeal involves the performance of Appellant's trial counsel. Since that is not an issue for appeal, there is no need for oral argument on this issue. This appeal involves issues this Court has resolved many times before, and without the need for oral argument.

That being said, Appellee conditions her request for oral argument upon Appellant's request for same and in the event that this Court orders oral argument.

STATEMENT OF THE CASE

Nature of the Case:	This case is a divorce without children, resulting in a just and right division of the known community estate.
Bench Trial Proceedings:	On February 27, 2020, an approximately two-hour bench trial was held, and proceedings adjourned at 11:47 a.m. with Honorable Kim Cooks, Judge Presiding. RR 1:1 and 1:47.

Motion New Trial:	On March 23, 2020 Petitioner filed a motion for new trial alleging ineffective assistance of counsel. CR1 282-283.
Bench Trial Disposition:	On April 3, 2020 Honorable Kim Cooks signed a Final Decree of Divorce with a just and right division of the known marital estate after listening to the parties testify and using her judicial discretion to judge the veracity of the witnesses. CR 1:286-293.
New Trial Proceedings:	On April 14, 2020 hearing was held with Honorable Kim Cooks presiding. RR2 1-21. Honorable Kim Cooks denied petitioner's request for new trial. RR2 21.
New Trial Disposition:	On April 17, 2020 Judge Cooks signed the Order Denying Motion for New Trial. CR1 295.

ABBREVIATIONS AND RECORD REFERENCES

Appellant Malcolm Johnson shall be referred to as "Malcolm" or "Appellant." Appellee Veronica Powell-Johnson shall be referred to as "Veronica" or "Appellee."

The Clerk's Record will be referred to as "CR" followed by the volume and page, as in "CR1 282-283." The Reporter's Records will be referred to as "RR" and will be cited by volume and page numbers, where applicable. [The table of clerk's record volumes is omitted from this transcription.]

STATEMENT OF FACTS

[Items A through J of the filed statement of facts describe the parties' marriage and personal history and are omitted from this transcription.]

K. On June 20, 2019, Malcolm filed Original Petition for Divorce. CR1 13.

P. On July 11, 2019, Veronica filed Original Counter Petition for Divorce and Application for Ex Parte Temporary Restraining Order. CR1 23-40.

FF. On October 29, 2019, Veronica files her sworn Inventory and Appraisement. The parties agreed and it was ordered on October 16, 2019 to file and exchange Inventory and Appraisements. Malcolm never filed his sworn Inventory and Appraisement, nor did he provide the Inventory and Appraisement to Veronica at any time during the divorce action. CR2 4-40.

LL. On February 27, 2020, Trial was held. Moments before going on the record, Malcolm produced to Veronica some documents. Judge entered trial memorandum/ruling. CR1 239-239 and RR1.

MM. On March 11, 2020, Malcolm's third attorney, Allen Roach, filed an appearance. CR1 240-240.

[The remaining items of the statement of facts are omitted from this transcription.]

OBJECTIONS TO AND MOTION TO STRIKE APPELLANT'S SUPPLEMENTAL APPENDICES 8 & 9

Before addressing the merits of the issues raised by Malcolm in his Appellant's Brief, Veronica specifically objects to Malcolm's brief appendices 8 and 9 and any reference to and reliance upon those documents in his brief as those

documents are not part of the formal appellate record. Appellant makes no justification for attaching documents which are not part of the formal appellate record and cites no case law allowing such documents.

It is well established that documents attached to an appellate brief, which are not part of the formal appellate record, may not be considered by the appellate court. *See Warriner v. Warriner*, 394 S.W.3d 240, 254 (Tex. App.—El Paso 2012, no pet.) (holding that documents attached to a brief as an exhibit or an appendix, but not appearing in the record, cannot be considered on appellate review); *Fox v. Wardy*, 234 S.W.3d 30, 33 (Tex. App.—El Paso 2007, pet. dism'd w.o.j.) (refusing to consider appellant's affidavit attached to brief because it was not part of the appellate record); *Cantu v. Horany*, 195 S.W.3d 867, 870 (Tex. App.—Dallas 2006, no pet.) (granting appellee's motion to strike portions of appellant's brief referring to documents outside record). The appellate record consists of the clerk's record and, if necessary to the appeal, the reporter's record. Tex. R. App. P. 34.1.

SUMMARY OF ARGUMENT

Reply Issue 1: Sufficient evidence supports the Trial Court's finding of fault against Malcolm so there was no abuse of discretion by the Trial Court. The Trial Court considered, among other evidence, [the evidence listed in the filed brief, omitted from this transcription in part]:

- the testimony regarding Malcolm's behavior in thwarting the sale of the home multiple times before trial and during this appeal;
- the unknown assets Malcolm refused to disclose; and
- multiple *Murff* factors in making the just and right division, all of which support the actual division. *See Murff v. Murff*, 615 S.W.2d 696, 699 (Tex. 1981).

Reply Issue 2: While Veronica is having trouble distinguishing Issue 2 from Issue 1, Veronica asserts the evidence is legally and factually sufficient to support the trial court's granting of the divorce on fault grounds and rendering a disproportionate portion of the disclosed community property to Veronica.

Reply Issue 3: Veronica believes this issue should be stricken from Malcolm's brief as this is not a ground for new trial or appeal.

Reply Issue 4: The Associate Judge used appropriate discretionary powers in granting Veronica attorney fees as requested in her Motion for Temporary Orders During Appeal (CR5 11, item d) and the Associate Judge modified his ruling by hand on the formal order, which is being attached as Appendix 1, so that

these fees only become due on the unsuccessful appeal of Malcolm. Malcolm did not ask for attorney fees on successful appeal before the trial court.

ARGUMENT & AUTHORITIES

A. Standard of Review—Abuse of Discretion

Most family law appealable issues are evaluated for abuse of discretion by a trial court. *In re A.B.P.*, 291 S.W.3d 91, 95 (Tex. App.—Dallas 2009, no pet.) A trial court abuses its discretion when it acts arbitrarily or unreasonably, or without any reference to guiding rules and principles. *Worford v. Stamper*, 801 S.W.2d 108, 109 (Tex. 1990) (per curiam). In an appellate factual sufficiency review, all the evidence in the record, both supporting and contrary to the trial courts' finding is examined. *See Ortiz v. Jones*, 917 S.W.2d 770, 772 (Tex. 1996) (per curiam); *In re C.A.S.*, 405 S.W.3d 373, 382–83 (Tex. App.—Dallas 2013, no pet.). Reversal on appeal is granted only if the trial court's finding misapplied the law, or is so against the great weight of the evidence as to be clearly wrong and unjust. *Id.*

When determining if the trial court abused its discretion, the appellate court considers whether the trial court (1) had sufficient evidence upon which to exercise its discretion, and (2) erred in its application of that discretion. *Moroch v. Collins*, 174 S.W.3d 849, 857 (Tex. App.—Dallas 2005, pet. denied). A trial court does not abuse its discretion if there is some evidence of a substantive and probative character to support the decision. *Id.*; *see also In re C.A.S.*, 405 S.W.3d at 383.

Trial courts are tasked with dividing the community estate in a "just and right" manner, considering the rights of both parties. Tex. Fam. Code Ann. § 7.001. Thus, a trial court would abuse its discretion in dividing community property if that property was not divided in a just and right manner. Trial courts are afforded wide discretion in dividing marital property upon divorce and, absent an abuse of discretion, this Court will not disturb the property division. *Murff*, 615 S.W.2d at 698; *Chavez v. Chavez*, 269 S.W.3d 763, 766 (Tex. App.—Dallas 2008, no pet.). "Equality in the division is not required, and this Court indulges every reasonable presumption in favor of the proper exercise of discretion by the trial court in dividing the community estate." *Toles v. Toles*, 45 S.W.3d 252, 264 (Tex. App.—Dallas 2001, pet. denied). Appellate courts reverse only if the record demonstrates the trial court clearly abused its discretion, and the error materially affected the just and right division of the community estate. *Jacobs v. Jacobs*, 687 S.W.2d 731, 732–33 (Tex. 1985).

B. Reply Issue I

> Evidence supports the Trial Court finding Malcolm at fault for the divorce on the grounds of adultery and/or cruelty.

Reply Issue I, Point B

> Malcolm incorrectly argues that the first mentioned ground for divorce is the only ground, misunderstanding that a court's later rulings may add to the grounds for divorce.

Malcolm, in his Appellant Brief on page 31 (Issue I, point B), focuses on the differences in the grounds for divorce as found in (1) the Trial Court's Memorandum Opinion (CR1 251), (2) the Final Decree of Divorce (CR1 255), (3) the Trial Court's initial findings and conclusions (CR3 4), and (4) the Trial Court's supplemental findings (CR3 7 & 8). Malcolm uses these differences to incorrectly conclude that he was found not at fault for the divorce since the Trial Court's ruling memorandum and the decree only listed the ground of insupportability.

Malcolm, however, fails to acknowledge that under well-established decisional precedent, any conflict between the original findings and later findings are resolved definitely in favor of the later findings. *See Redman v. Bennett*, 401 S.W.2d 891 (Tex. Civ. App.—Tyler 1966, no writ); *Anderson v. Geraghty*, 212 S.W.2d 972, 974 (Tex. Civ. App.—San Antonio 1948, no writ). The later findings merely state other grounds for the divorce, i.e., adultery and cruelty, in addition to insupportability. So, this is not the absolution Malcolm is searching for and his divorce was not granted solely on the ground of insupportability. Of note, Malcolm states no legal precedent for this particular argument. Therefore, this Court should overrule Appellant's issue I, point B.

[Reply Issue I, Points C and D, and Reply Issue II are omitted from this transcription.]

D. Reply Issue III

> By not granting Malcolm a new trial, the Trial Court avoided abusing their discretion as Malcolm has no right to a new trial based on ineffective assistance of counsel as his civil matter does not involve termination of parental rights or involuntary commitment.

Malcolm alleges an issue on appeal based on a right that does not exist for him in this matter. Malcolm requests this Appellate Court to reverse and remand for a new trial due to ineffective assistance of counsel. Effective assistance of counsel, however, is not a right that extends to this case. Generally, the doctrine of ineffective assistance of counsel does not extend to civil cases. *See In re Interest of P.S.*, 505 S.W.3d 106, 110 (Tex. App.—Fort Worth 2016, no pet.); *McCoy v. Tex. Instruments, Inc.*, 183 S.W.3d 548, 553 (Tex. App.—Dallas 2006, no pet.). Civil cases in which the right to effective assistance of counsel has been found to apply involve the termination of an individual's parental rights, *see In re M.S.*, 115 S.W.3d 534, 544 (Tex. 2003), or the deprivation of liberty, *see Lanett v. State*, 750 S.W.2d 302 (Tex. App.—Dallas 1988, writ denied) (involuntary civil commitment).

Appellant cites no case law supporting his contention that he has a right to effective assistance of counsel, because there is none. There is only case law that this right does not extend to him because this civil case does not concern termination of parental rights or deprivation of liberty. *See In re M.S.*, 115 S.W.3d at 544 and *Lanett*, 750 S.W.2d at 302.

Since Malcolm has no right to a new trial because of ineffective assistance of counsel, it is impossible for the trial court to have abused its discretion in denying a new trial. There is no need to examine how his counsel allegedly failed him with discovery or at trial. Malcolm was already on his second attorney, so we know he knows how to fire and hire a new attorney. *See* the order granting Ben Boothe's withdrawal, CR1 124-125 and the appearance of Paul Gomez, CR1 120.

E. Reply Issue IV

> The Trial Court appropriately awarded Veronica attorney fees on appeal because she requested them, and Malcolm did not.

Malcolm complains that the trial court erred in not making the same attorney fee finding for him as it did for Veronica. Malcolm relies on *In the Interest of T.L.T.* which cites several cases pertaining to appellate attorney fees. *See* Appellant's Brief p. 59, citing *In the Interest of T.L.T.*, No. 05-16-01367-CV, 2018 Tex. App. LEXIS 2025, at *10 (Tex. App.—Dallas 2018, no pet.).

However, Malcolm skips over one cited statement made in *T.L.T.*: "A movant must affirmatively plead for attorneys' fees unless the issue is waived or tried by consent. *In re Pecht*, 874 S.W.2d 797, 803 (Tex. App.—Texarkana 1994, no writ)." Veronica did plead for attorney fees in her Motion for Temporary Orders Pending Appeal. *See* CR5 11-12, item d. Presently, Veronica is unaware of Malcolm requesting any attorney fees on appeal. Thus, his requested modification

by this Appellate Court is impossible to grant as Malcolm did not affirmatively plead for attorney fees.

CONCLUSION AND PRAYER

[The opening paragraphs of the filed conclusion are omitted from this transcription.]

Veronica was awarded a disproportionate share of the known estate, but not even one hundred percent of the known estate, as Malcolm claims to this Court in some parts of his brief. Malcolm was awarded all property in his possession.

For these reasons, Veronica respectfully requests the following relief:

- That this Court deny Malcolm's claim that ineffective assistance of counsel is grounds for a new trial or for reversal on appeal.
- That this Court affirm the trial court's findings of fault.
- That this Court affirm the trial court's division of the community property based on the testimony of Veronica.
- That this Court affirm the award of $14,000.00 attorney fees to Veronica's attorney as set forth in the Temporary Orders on Appeal.
- Further, that this Court grant her such other relief, both general and special, at law or in equity, to which she may show herself to be justly entitled.

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

I, Karen M. Billingham, certify:

1. This brief complies with the type-volume limitation of Tex. R. App. P. 9.4(i)(2)(B) because it contains 2101 words, excluding the parts of the brief exempted by Tex. R. App. P. 9.4(i)(1).
2. This brief complies with the typeface requirements of Tex. R. App. P. 9.4(e) because it has been prepared in a conventional typeface of 14 points for the text and 12 points for the footnotes.

/s/ Karen M. Billingham
Karen M. Billingham

CERTIFICATE OF SERVICE

The undersigned certifies that a true and correct copy of the foregoing Appellee's Brief has been served on all counsel of record via electronic service on this 15th day of February 2021.

/s/ Karen M. Billingham
Karen M. Billingham